



### CHAPTER lviii.

An Act to consolidate the rates of the borough of Southampton to confer further powers upon the mayor aldermen and burgesses of that borough and for other purposes.

A.D. 1925.

[31st July 1925.]

**W**HEREAS the borough of Southampton is a county of itself and is a county borough under the government of the mayor aldermen and burgesses of the borough of Southampton (in this Act called "the Corporation") who acting by the council of the borough are the council of the urban sanitary district which comprises the borough :

And whereas it is expedient to provide for the consolidation of the rates levied in the area of the borough :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present



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A.D. 1925. — Parliament assembled and by the authority of the same  
as follows (that is to say) :—

PART I.

PRELIMINARY.

Short  
and  
collective  
titles.

1.—(1) This Act may be cited as the Southampton Corporation Act 1925.

(2) The Southampton Corporation Acts 1836 to 1921 and this Act may be cited as the Southampton Corporation Acts 1836 to 1925.

Division  
of Act  
into Parts.

2. This Act is divided into Parts as follows (that is to say) :—

Part I.—Preliminary.

Part II.—Rating.

Part III.—Finance and miscellaneous.

Interpre-  
tation.

3. In this Act unless the subject or context otherwise requires—

(a) “The Corporation” means the mayor aldermen and burgesses of the borough of Southampton;

(b) “The borough” means the borough of Southampton;

(c) “The town clerk” and “the treasurer” mean respectively the town clerk and the treasurer of the borough;

(d) “The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

(e) “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be



passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

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“Statutory security” means any security or investment in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation.

## PART II.

### RATING.

4.—(1) This Part of this Act (except the section whereof the marginal note is “Number of overseers” which shall come into operation on the passing of this Act) shall come into operation on the first day of April nineteen hundred and twenty-six.

Commence-  
ment of  
this Part  
of Act  
and inter-  
pretation.

(2) In this Part of this Act—

“The parish” means the parish of Southampton;

“The overseers” means the overseers of the parish.

5.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund or general district rate shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Part of this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any

All expenses  
of Corpora-  
tion to be  
paid out of  
borough  
fund and  
rate.



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A.D. 1925. — such Act or Order shall be deemed to be a reference to the borough fund and the borough rate.

(2) The district fund shall be closed and any balance which on the date upon which this Part of this Act comes into operation is standing to the credit or to the debit of the district fund or the general district rate respectively shall on that date be transferred to the credit or the debit (as the case may be) of the borough fund but any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

(3) The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

Contribution to borough rate to be paid out of poor rate.

6. The contribution of the parish to the borough rate shall be paid by the overseers out of the poor rate and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall (subject to the provisions of this Part of this Act) apply to the said contribution.

Poor rate to be called general rate.

7. The poor rate (inclusive of the contributions to the borough fund levied as part thereof in pursuance of the provisions of this Act) shall be called "the general rate" but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate.

Differential rating for certain classes of hereditaments.

8. The provisions contained in this section shall have effect with respect to the general rate to be made and levied by the overseers (that is to say) :—

(1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or



towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the general rate in respect of such hereditaments on the full rateable value thereof but (subject as next hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of sixty-eight and a half per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section :

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- (2) During the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the borough as if the following provision were substituted for section 1 thereof (that is to say) :—

“ The owner of tithe rentcharge attached to a benefice shall be liable to pay only four-sevenths of the amount payable under subsection (1) of the section of the Southampton Corporation Act 1925 whereof the marginal note is ‘ Differential rating for certain classes of hereditaments ’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining three-sevenths thereof shall on demand being made by the collector of the rate on the inspector of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of estate duty grant : ”

- (3) (a) During the continuance of the Agricultural Rates Acts 1896 and 1923 the occupier of any agricultural land as defined in the Agricultural Rates Act 1896 shall be liable to pay in each year in respect of such land a rate calculated on the basis of one-fourth only (instead of sixty-eight and a half per centum) of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section ;



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(b) On the expiration of the Agricultural Rates Act 1923 the words "forty per centum" shall during the continuance of the Agricultural Rates Act 1896 be substituted for the words "one-fourth" in paragraph (a) of this subsection :

(4) Nothing in this section shall in any way affect—

(a) The share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or

(b) The operation of the Agricultural Rates Act 1923 or the power of the Minister of Health to estimate as respects each half-year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923;

(c) The operation of the Ecclesiastical Tithe Rentcharges (Rates) Acts 1920 and 1922; or

(d) The amount of the contribution for any purposes to be made by the parish out of the poor rate :

(5) (a) If any occupier referred to in subsection (1) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the ground thereof be given by the appellant to the Corporation and the overseers;

(b) On appeals under this section the court to which such appeal shall be made shall have



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power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal: A.D. 1925.

- (6) The abatement (if any) allowable under Article XX. of the Southampton Order 1895 (which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1895 Session 2) shall be made out of the general rate and shall be deemed to be ten per centum of the rate in the pound of that rate.

9.—(1) The owner instead of the occupier may from time to time at the option of the Corporation be rated to the general rate—

Rating of  
owners  
instead of  
occupiers.

- (a) where the rateable value of the property does not exceed twelve pounds; or  
(b) where the premises are let in separate apartments; or  
(c) where the rents are collected weekly:

Provided that—

- (i) the owner so rated shall be entitled to a deduction of ten per centum from the amount of the rate when paid by him if he shall pay the same within such period as the Corporation may determine not being less than three months after the rate shall have been made or two months after the same shall have been demanded whichever shall be the later;
- (ii) where the owner of any premises referred to in this subsection is willing to enter into an agreement to pay the rates whether the premises are occupied or not the Corporation may make an allowance or a further allowance not exceeding ten per centum from the amount of the rate when paid by him within such period as the Corporation may determine not being less than three months after the rate has been demanded.

(2) When the Corporation exercise their powers under this section they shall forthwith give notice thereof to the overseers and the overseers shall rate the owner and the owner shall pay the rate accordingly and during the currency of any such notice the provisions of this



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A.D. 1925. — section shall apply within the borough in substitution for the provisions with regard to the rating of owners instead of occupiers which are contained in sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869.

Certain  
sections of  
Public  
Health  
Act 1875  
to apply.

**10.** Section 220 (Description of owner or occupier) and section 221 (Rates may be amended) of the Public Health Act 1875 shall apply to the borough in respect of the general rate as if the overseers were an urban authority and the rate therein mentioned were the general rate and the said section 221 shall extend to enable the overseers to amend any rate made by them in pursuance of this Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate.

Payment  
of general  
rate by  
instalments.

**11.** The overseers if so required by the Corporation shall in pursuance of the provisions of section 15 (Overseers may make poor rate payable by instalments) of the Poor Rate Assessment and Collection Act 1869 declare that any general rate made by them for a period exceeding three months shall be paid by instalments at such times as shall have been previously specified by the Corporation.

Operation  
and  
incidence  
of rate.

**12.**—(1) Subject to the provisions of this section every general rate shall be made in respect of a period commencing immediately after the expiration of the last preceding period in respect of which a general rate was made and terminating on such date to be specified in the rate as may be fixed by the Corporation and in the case of the last rate made in any financial year the date so fixed shall be the last day of that year.

(2) Subject as hereinafter provided the amount charged by a rate in respect of any hereditament shall be due from the person who is in occupation of that hereditament during the period in respect of which the rate is made :

Provided that if any person is in occupation of a hereditament for part only of the period in respect of which the rate is made the amount due from that person shall be an amount which bears the same proportion to the total amount charged by the rate in respect of that hereditament as the number of days during which that person is in occupation bears to the number of days



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comprised in the period in respect of which the rate is made. A.D. 1925. —

**13.** The provisions of section 267 of the Public Health Act 1875 shall apply to demand notes for the general rate and for any charges for the supply of water or electricity. Service of rate demands by post.

**14.—(1) (a)** Any water rate or charge payable to the Corporation in respect of premises within the borough may be collected together with the general rate and the same books may be used for the said rate or charge and the general rate. Water rate may be collected with general rate.

**(b)** The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate and water rate or charge shall be in such form as the Minister of Health may from time to time prescribe.

**(2) (a)** The Corporation may demand all water rates and charges payable to them by half-yearly instalments in advance on the first day of April and the first day of October in each year but so that the same shall not be recoverable until the expiration of two months from the said first day of April and first day of October respectively.

**(b)** When the Corporation exercise the powers of this subsection the Southampton Corporation Water Act 1921 shall be modified as follows:—

**(i)** Section 31 (Rates for supply of water for domestic purposes) shall have effect as if “half-year” were substituted for “quarter” in subsection (2) thereof and as if “half-yearly” were substituted for “quarterly” in subsection (3) thereof;

**(ii)** The proviso to section 32 (Dates for payment of water rates) shall not apply.

**15.** For the purpose of section 133 (Until completion of works promoters shall make good any deficiency of land tax and poor’s rate caused by lands being taken) of the Lands Clauses Consolidation Act 1845 the poor’s rate shall be deemed to be fifty-eight per centum of the amount in the pound of the general rate. As to section 133 of Lands Clauses Consolidation Act 1845.

**16.** No warrant of commitment in respect of non-payment of the general rate shall be issued against any person who shall satisfy the court that his failure to pay As to recovery of general rate.



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A.D. 1925. — the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate.

Number of overseers. 17. Notwithstanding anything to the contrary in any Act or Order the Corporation may appoint such number of overseers for the parish as they think fit.

Appointment of officers and provision of offices. 18. The Corporation may appoint and remove such officers as they deem necessary to assist in the discharge of the duties of the overseers of the parish and may fix the remuneration to be paid to such officers and the Corporation may provide and maintain such offices as they may deem necessary for the transaction of the overseers' business.

Transfer of officers. 19.—(1) Any person holding at the commencement of this Part of this Act the office of collector of the poor rates for any area the whole or any part of which is now included in the parish and who was appointed to such office either by the guardians of the poor of the parish of Southampton or by the guardians of the poor of the South Stoneham Union shall (subject to the provisions of this section and unless his appointment was a temporary appointment) upon the commencement of this Part of this Act become an officer of the Corporation and every such person is in this section called a "transferred officer."

(2) The Corporation may at their discretion determine the employment of any transferred officer.

(3) Every transferred officer may within three months after the commencement of this Part of this Act relinquish his office.

(4) Subject to the provisions of this section every transferred officer shall hold his office by the same tenure and upon the same terms and conditions as if this Act had not been passed and while performing the same or analogous duties shall receive not less salary or remuneration and be entitled to not less pension than that to which he would have been entitled but for the passing of this Act.

(5) If at any time within five years after the commencement of this Part of this Act any transferred officer is required by the Corporation to perform duties



which are not analogous to or which are an unreasonable addition to those which he is required to perform immediately before the commencement of this Part of this Act such officer may relinquish his office. A.D. 1925.  
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(6) Every transferred officer whose employment is so determined or who so relinquishes his office or situation or whose services are dispensed with on the ground that they are not required or for any reason not being on account of any misconduct or incapacity or whose salary wages or remuneration is or are reduced on the ground that his duties have been diminished or who otherwise suffers any direct pecuniary loss by reason of the provisions of this Act shall be entitled to be paid compensation for such pecuniary loss to be determined and paid by the Corporation in accordance with the provisions contained in section 120 of the Local Government Act 1888 relating to compensation to existing officers and those provisions shall apply accordingly as if they were herein re-enacted subject to the following and any necessary modifications :—

- (a) The expression in subsection (1) of section 120 of the Local Government Act 1888 “ the Acts and rules relating to Her Majesty’s Civil Service ” shall mean the Acts and rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Local Government Act 1888 ;
- (b) The Minister of Health shall be substituted for the Treasury in that section ;
- (c) References in that section to “ the passing of this Act ” shall be construed as references to the commencement of this Part of this Act or to the date of relinquishment of office or determination of employment as the case may be ; and
- (d) Any reference in that section to the county council shall be construed as a reference to the Corporation.

(7) In computing the time of service in any capacity of any transferred officer for the purpose of determining the compensation to which he is entitled under this Act the Corporation shall take into account all the service of any such officer in any capacity under any local



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A.D. 1925. authority or authorities as defined in section 34 of the  
— Local Loans Act 1875 whether such officer has been  
appointed annually or otherwise.

(8) In determining the compensation payable under this Act to any transferred officer his salary fees or emoluments shall be deemed to include all fees or other remuneration received by him for any services performed by him under or for the purposes of the Representation of the People Act 1918 or the Acts amending the same.

(9) If the annual contributions required by the Poor Law Officers' Superannuation Act 1896 have been made by any transferred officer the provisions of that Act shall continue to apply to that officer subject to the following modifications :—

(a) References to the Corporation shall be substituted in the provisions of the Act for references to guardians and the said provisions shall in other respects apply and have effect as if the Corporation were within the meaning of those provisions an authority to which the Act applies ;

(b) The contributions of any transferred officer shall after the date of transfer be carried to and form part of the borough fund or shall be applied in aid of the borough rate and any superannuation allowance or gratuity under the provisions of the Act shall be paid by the Corporation out of the borough fund or rate ;

(c) If a transferred officer becomes entitled to compensation by reason of the relinquishment of his office or determination of his employment he shall be deemed to lose his office within the meaning of section 8 of the Act and the amount which he shall be entitled to receive in pursuance of that section shall include every payment made to the Corporation by the guardians in respect of his contributions in pursuance of this Act.

(10) The contributions which have been made by any such officer under the Poor Law Officers' Superannuation Act 1896 shall in so far as such contributions have been received by the guardians of the parish be paid to the Corporation by the guardians.



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(11) No officer shall be entitled to receive compensation under this section for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss. A.D. 1925.  
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**20.**—(1) Section 3 of the Union Assessment Committee Act 1862 in its application within the parish shall have effect as if the words “if directed by the said guardians to do so” were omitted therefrom. Application of Union Assessment Committee Act 1862.

(2) The first meeting of the assessment committee of the parish after their appointment shall be held not earlier than twenty-eight days after the names of the persons appointed by the guardians have been transmitted to the Corporation in accordance with the said section 3 as amended by subsection (1) of this section.

**21.**—(1) The overseers may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the parish (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the schedule to this Act and containing the particulars therein mentioned or referred to : Overseers may require returns.

Provided that (except for purposes connected with the preparation of and preliminary to a general re-valuation for rating) the powers conferred by this section shall only be exercised—

- (a) upon any change in the occupation or ownership of any hereditament; or
- (b) upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) in the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after the service of the notice shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and any person



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A.D. 1925. — who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers shall whenever required by the assessment committee of the parish permit the duly authorised officer of such committee to have access to the returns or any of them obtained by the overseers under the provisions of this section for the purpose of inspecting the same and making copies thereof.

(4) Nothing in this section shall require a railway company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings stations or docks.

PART III.

FINANCE AND MISCELLANEOUS.

Power to  
borrow.

22.—(1) The Corporation may borrow at interest the sum required for paying the costs charges and expenses of this Act and they shall repay all moneys so borrowed within five years from the passing of this Act.

(2) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act and they shall repay all money borrowed under this subsection within such period (in this Act referred to as "the prescribed period") as may be prescribed by the said Minister.

(3) For securing the repayment of the money borrowed under this Act and the payment of interest thereon the Corporation may mortgage or charge the borough fund and the borough rate. Provided that the provisions of this subsection shall not limit the powers conferred upon the Corporation by section 80 (Power to use one form of mortgage for all purposes) of the Southampton Corporation Act 1910.

Rate of  
accumula-  
tion of  
payments  
to sinking  
fund.

23.—(1) Notwithstanding anything contained in this Act or in any Acts or regulations governing the same the rate of accumulation of the annual payments to any accumulating sinking fund which has been or may be formed by the Corporation for any purpose shall be such rate not exceeding (except with the approval of the



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Minister of Health) three pounds ten shillings per centum per annum as the Corporation may determine. A.D. 1925.

(2) Section 13 of the Southampton Corporation Act 1920 and section 56 of the Southampton Corporation Water Act 1921 are hereby repealed.

**24.**—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Return to  
Minister  
of Health  
with  
respect to  
repayment  
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the



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A.D. 1925. Minister with regard to the repayment of debt by any provisions of any Acts or Provisional Orders now in force in the borough or by any regulations made thereunder notwithstanding anything contrary to or inconsistent therewith in any such Act Order or regulation.

Use of  
moneys  
forming  
part of  
reserve  
and other  
funds.

**25.** The Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any fund accumulated as a reserve renewals contingent or insurance fund (in this section respectively referred to as "the lending fund") and not for the time being required for the purpose for which the moneys have been accumulated subject to the following conditions :—

- (1) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established and if and so far as they are not so required within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable. Provided that the Corporation may if they so determine repay to the lending fund the amount so used at any time within the period aforesaid :
- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid to the fund and such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to the reborrowing of sums raised under the statutory borrowing power shall apply thereto.



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**26.** When under any general or local Act of Parliament the sanction of a Government department (including the Electricity Commissioners) is given to the borrowing of any money by the Corporation the production of the instrument whereby such sanction is given shall as between the Corporation and the lender be conclusive evidence that the borrowing by the Corporation of any sum not exceeding the sum mentioned in such instrument is within the statutory powers of the Corporation.

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Sanction to  
loans to be  
conclusive  
evidence.

**27.** If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Receipt in  
case of  
persons not  
sui juris.

**28.**—(1) Every deed of transfer of any mortgage of the Corporation shall relate only to the transfer and shall not contain any recital trust power or proviso whatsoever.

Provisions  
as to  
transfers of  
mortgages.

(2) The deed of transfer when duly executed and stamped shall be delivered to and (unless endorsed on the mortgage) shall be kept by the Corporation and the Corporation shall enter a memorial thereof in the appropriate register of the Corporation and shall endorse a note of that entry on the deed of transfer and also on the transferred mortgage unless the deed of transfer is endorsed thereon.

(3) Until the deed of transfer has been so delivered to the Corporation the Corporation shall not be affected thereby and the transferee of the mortgage shall not be entitled to receive any interest thereon or to repayment thereof.

(4) The Corporation before allowing any transfer of any mortgage may if the circumstances of the case appear to them to make it expedient require evidence of the title of any person claiming a right to make the transfer.

(5) That evidence shall be a statutory declaration of one or more competent persons or of such other nature as the Corporation may require.

(6) It shall not be obligatory on the Corporation or any officer of the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or



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A.D. 1925. — other document evidencing a transmission of any mortgage except upon the production to and temporary deposit with the town clerk of the mortgage for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new mortgage and in the case of the issue of a new mortgage for the purpose of cancellation of the mortgage so deposited.

Interest on  
mortgages  
held  
jointly.

29. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation by any other of them.

Further  
powers for  
acquisition  
of lands.

30.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of such an amount as the Corporation may determine (not being less than the amount of the outstanding loan in respect thereof) shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate :

Provided that nothing in this subsection shall authorise the Corporation—

(a) to create or permit any nuisance on any lands so appropriated;

(b) to appropriate such lands to any purposes other than purposes for which and subject to the conditions under which they are for the time being authorised to acquire and use lands,



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(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

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—

(a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health; or

(b) in such other manner as may be approved by the Minister of Health.

**31.**—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by that Minister under the Public Health Act 1875.

Inquiries  
by Minister  
of Health.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

**32.** The following enactments shall with any necessary modifications and subject as regards mortgages granted under the provisions of section 80 (Power to use one form of mortgage for all purposes) of the Southampton Corporation Act 1910 to the provisions of that section extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely) :—

Application  
of existing  
enactments.

THE SOUTHAMPTON CORPORATION TRAMWAYS ACT 1897.

Section 27 (Provisions as to mortgages);

Section 34 (Power to borrow under Local Loans Act 1875);



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Section 36 (Protection of lenders from inquiry);  
and

Section 40 (Application of money borrowed).

THE SOUTHAMPTON CORPORATION ACT 1910.

Section 25 (Power to retain sell &c. lands);

Section 26 (Proceeds of sale of surplus lands);

Section 75 (Mode of payment off of money  
borrowed);

Section 76 (Sinking fund);

Section 77 (Corporation not to regard trusts);

Section 98 (Recovery of penalties &c.);

Section 99 (Recovery of demands);

Section 101 (Informations by whom to be laid);

Section 103 (Judges not disqualified);

Section 104 (Application of section 265 of Public  
Health Act 1875);

Section 105 (Saving for indictment &c.); and

Section 107 (Powers of Act cumulative):

Provided that nothing in section 25 of the Southampton Corporation Act 1910 shall be taken to dispense with the necessity for obtaining the consent of the Board of Education to any sale lease or other disposition of land acquired under this Act and appropriated for the purposes of education in any case in which such consent would be required if this Act had not been passed.

Costs of  
Act.

**33.** The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or out of money to be borrowed for that purpose.



SCHEDULE.

A.D. 1925.

RETURN OF RENT OR ANNUAL VALUE AND OF OTHER  
PARTICULARS TO BE RENDERED UNDER THE  
SOUTHAMPTON CORPORATION ACT 1925.

|                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|
| <p>1. Name of the street or road &amp;c. in which the property is situate -<br/>Number of the house - - - -<br/>(If not numbered state the name by which known.)<br/>Whether occupied with or without garage stables or other premises as part of the same property -<br/>The quantity of land (if any) and how used.</p>                                                                                                                   |                                                   |
| <p>2. Full Christian names or forenames and surname of occupier - -</p>                                                                                                                                                                                                                                                                                                                                                                     |                                                   |
| <p>3. Name and address of owner or immediate lessor - - - -<br/>(If not known state the name and address of the agent or person to whom the rent is paid.)</p>                                                                                                                                                                                                                                                                              |                                                   |
| <p>4. Whether the property is occupied—<br/>(a) Wholly as a private residence - - - - -<br/>or (b) Partly as a dwelling-house and partly for trade or business purposes - - - -<br/>or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - -<br/>(Number of rooms set apart for the use of the caretaker (if any) and on which floor.)<br/>(d) Nature of the business (if any) -</p> | <p>(a)<br/><br/>(b)<br/><br/>(c)<br/><br/>(d)</p> |



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|                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                          |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|
| <p>5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - . . . . .</p>                                                                                                                                                                                                                                       |                                                                                                          |
| <p>6. Amount of rent - . . . . .<br/>             or if ground rent only is paid state its amount - . . . . .</p>                                                                                                                                                                                                                                                             | <p>£                      per<br/>          £                      per</p>                               |
| <p>7. Whether the property is held under lease or agreement for a period of years - . . . . .<br/>             or by the year quarter month or week - . . . . .</p>                                                                                                                                                                                                           |                                                                                                          |
| <p>8. (a) Date of commencement of term of lease or agreement - . . . .<br/>             (b) Term of years for which granted<br/>             (c) Whether granted for any consideration in money in addition to the rent or upon any condition as to the laying out money in building rebuilding or improvements - . . . . .<br/>                 (If none insert "None.")</p> | <p>(a)<br/>          (b)<br/>          (c)<br/>          Amount paid for lease £</p>                     |
| <p>9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - . . . . .</p>                                                                                                                                                      | <p>} Annual value £</p>                                                                                  |
| <p>10. (a) Amount of land tax (if any) -<br/>             (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 . . . .<br/>                 (State in each case whether borne by the landlord or tenant.)</p>                                                                                                                    | <p>(a) £                      . Borne by the<br/>          (b) £                      . Borne by the</p> |



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11. Whether all usual tenant's rates  
and taxes are paid and borne by  
the occupier in addition to the  
rent - - - - -

12. Whether the landlord or the tenant  
undertakes to bear the cost of  
repairs insurance and other  
expenses necessary to maintain  
the property - - - - -  
(If each undertakes to bear part  
only of the cost of repairs state  
particulars.)

DECLARATION.

I declare that the foregoing particulars are in every respect  
fully and truly stated to the best of my judgment and belief.

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